

FRAGOZA v TREVINO

25CV48144

CROSS-DEFENDANT'S DEMURRER TO FIRST AMENDED CROSS-COMPLAINT

This matter involves a real property dispute between Cruz Fragoza ("Fragoza") and Stevino Real Estate Investment, LLC ("LLC"), Steven C. Trevino ("Trevino"), Angela M. Barry ("Barry") and William Carter ("Carter") (collectively "Cross-Complainants.")

Now before the Court is a demurrer filed by Fragoza as to the fifth cause of action in the First Amended Cross-Complaint ("FACC") for intentional infliction of emotional distress.

The Court grants Fragoza's request for judicial notice ("RJN"). Cross-Complainants have not filed any oppositions to the RJN or the demurrer.

I. Facts

The facts are compiled from the Cross-Complaint and the judicially noticed documents.

LLC is the record owner of real property known as 2920 Heinemann Drive, Valley Springs, CA 95252, Assessor's Parcel Number 072-019-022 ("APN 2.")(FACC ¶ 3.) Trevino is a member of the LLC. (*Id.* ¶ 5.) Barry and Carter have been tenants since 2010 and 2017 respectively. (*Id.* ¶ 6.)

Next to APN 2 is an unimproved lot with a septic system, commonly known as 2912 Heinemann Dr., Valley Springs, CA, APN 072-019-021 ("APN 1.") (FACC ¶ 3.) APN 1 is owned by Cruz (*Id.* ¶ 7.) It is alleged that Cruz lost ownership of APN 2 through a foreclosure and trustee's sale in 2007-2008. (*Ibid.*) Cross-Complainants allege that the sewer lines and septic system on APN 1 serves the home on APN 2. (*Id.* ¶ 9.)

In 1999, Roger and June Jones transferred APN 1 and APN 2 in fee simple to Charles and Anna Benson ("Bensons") as joint tenants. Improvements including the house and septic system were constructed in or around 1999. (FACC ¶ 10.) Around August 28, 2000, the Bensons deeded APN 1 and APN 2 to Cruz and/or members of the Fragoza family ("Fragoza Deed"). (RJN 1.)

The Fragoza Deed refers to the transfer of Lots 2069 and 2070 as well as the septic easement across Lot 2069. (*Ibid.*) In or around November 2005, the Fragozas entered a Deed of Trust ("DOT") with Lenox Financial Mortgage Group with Mortgage Electronic Registration Systems, Inc ("MERS") listed as the beneficiary. (RJN 3.) The Deed of Trust references APN 1 and APN 2. (*Ibid.*) The Fragozas entered into another DOT with Louie and Juanita Curtis in December 2006 (RJN 4.) This DOT also referenced the transfer of Lots 2069 and 2070 as well as the septic easement across Lot 2069 (APN 2.) (*Ibid.*)

On May 30, 2007, LandAmerica Default Services recorded a notice of default as to the first DOT recorded in 2005 in favor of MERS. (RJN 5.) In September of 2007, a notice of trustee's sale was recorded. (RJN 6.) In or around February 2008, Deutsche Bank took ownership of APN 2. (RJN 7.)

On or about October 24, 2008, the LLC purchased APN 2 from Deutsche Bank ("LLC Deed") (RJN 8.) The LLC Deed references APN 2 and refers to two parcels: 1) Lot 2070, and 2) the septic easement over Lot 2069. (*Ibid.*) However, according to Cross-Complainants, while the LLC purchased APN 2 in 2008, from then onward the Cross-Complainants have "openly, notoriously, and continuously possessed and maintained both APN 1 and APN 2 as a single homesite: mowing, clearing brush, maintaining fencing, using and maintaining the septic system, and renting APN 2 as a residence to Barry and Carter." (FACC ¶ 14.)

On or around February 22, 2011, the LLC received a letter from the Office of Treasurer-Tax Collector of Calaveras County (the "Tax Office"). (CC ¶15.) The Tax Office letter stated that there was a delinquent tax bill APN 1, "which was included as part of a parcel that is now in your name 072-019-022 [APN 2]." (*Ibid.*) According to Cross-Complainants, the Tax Office indicated that the taxes had been resolved and Cross-Complainants had no idea that someone else was paying taxes on APN 1. (*Id.* ¶ 44.) There are no allegations that Cross-Complainants inquired as to how the tax issue was resolved nor whether any other entity was paying the taxes.

On July 28, 2011, Fragoza notified LLC that he was the owner of APN 1 and that he had intentions to sell APN 1. (FACC ¶ 16.) Allegedly another letter followed in 2017 complaining about Tenants' cutting of trees and threatening to place a cross-fence, "which Cross-Complainants understood primarily as a threat concerning Tenants' dogs rather than a concrete effort to alter property boundaries." (*Ibid.*)

In 2024, Fragoza's attorney apparently contacted the LLC asserting that Fragoza owned APN 1 in fee and that Cross-Complainants had only a limited septic easement. (FACC ¶ 17.)

In or around the spring of 2025, Fragoza appeared on the Property and erected a fence on the curtilage of APN 2's home, placed items over the septic system, and damaged and removed sections of the perimeter fence along the Property boundary. (FACC ¶ 18.) Cruz used a chainsaw and other tools to cut and remove fencing while the tenants were at home. Cross-Complainants perceived his conduct as aggressive and physically threatening and filed a civil harassment action in Case No. 25CH48034, which was later dismissed after they were unable to serve Fragoza. (*Id.* ¶ 19.)

II. Legal Standard

"A demurrer tests the sufficiency of a complaint and admits all facts properly pleaded." (*Setliff v. E.I. Du Pont de Nemours & Co.* (1995) 32 Cal. App. 4th 1525, 1533.) The court assumes the truth of the allegations asserted but does not assume the truth of "contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal. App. 4th 242, 247.) The court can further look at those facts that "reasonably can be inferred from those expressly pleaded, and matters of which judicial notice has been taken." (*Fremont Indemnity Co.*, 148 Cal. App. 4th 100, 111.) In considering the demurrer, the court must accept the allegations set forth in the complaint as true. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591.)

III. Discussion

To assert a cause of action for intentional infliction of emotional distress, the FACC must allege: 1) extreme and outrageous conduct by the cross-defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the cross-defendants' suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Ess v. Eskaton Properties* (2002) 97 Cal.App.4th 120, 129-130.) "Generally, conduct will be found to be actionable where the 'recitation of the facts to an average member of the community would arouse his resentment against the actor, and lead him to exclaim, 'Outrageous!'" (*KOVR-TV, Inc. v. Superior Court* (1995) 31 Cal.App.4th 1023, 1028 [citing Rest.2d Torts, § 46, com. d].) The conduct must not only be outrageous, but also "directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware." (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.)

Here, the FACC alleges that Fragoza entered APN 2, where Barry and Carter were living, “wielding a chainsaw and other loud tools, and proceeded to cut, damage, and remove the perimeter fence and to erect new fencing in a confrontational manner, while Tenants were present in the home.” (FACC ¶ 46.) They allege that this behavior, along with blocking access to utilities, was outrageous behavior. (*Id.* ¶ 47.)

The only parties who could arguably raise this cause of action would be Barry and Carter, who were the only Cross-Complainants on the property at the time of the alleged fence cutting. However, the fact that the tenants were at home and disturbed by Fragoza’s actions simply does not give rise to the level of outrageous conduct required for this tort. Indeed, liability “does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.” (*Molko v. Holy Spirit Assn.* (1988) 46 Cal.3d 1092, 1122 [citing Rest.2d Torts, § 46, com. d.])

IV. Conclusion

The demurrer is **SUSTAINED**, with 10 (ten) days leave to amend, for the fifth cause of action for intentional infliction of emotional distress.

The clerk shall provide notice of this ruling to the parties forthwith. Fragoza to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.

NICHOLAS v LEMP

25CV48280

PLAINTIFF'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT; DEFENDANT'S MOTIONS TO COMPEL DISCOVERY AND LICENSURE

These matters involve real property disputes between Danny E. Nicholas ("Plaintiff") and Lani Arellanes ("Arellanes") and Cathy Lemp ("Lemp.")

Now before the Court are three motions. Two are filed by Defendant Lemp: 1) motion to compel production of a certificate of licensure and 2) motion to compel discovery responses. The third filed by Plaintiff is a motion to amend the complaint.

All of the motions do not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]